

## **complaint**

Mrs M is unhappy with Elite Insurance Company Limited because it's declined her storm claim made under her home insurance policy. The claim is for external roof damage and internal damage to her bathroom.

## **background**

Elite doesn't deny there was a storm but it says the roof wasn't damaged by the storm and that the bathroom may have been damaged by rain but not wind. It says its policy only offers cover against damage resulting from storm winds, not rain. As such, it's denied liability for all the damage at Mrs M's home.

Mrs M has been able to use another bathroom while the dispute has been on-going but wants Elite to cover her claim. She says there's been no damage since roof work was done so that, and the internal damage, can only have been caused by the storm.

Our adjudicator said that he felt Elite's decision in respect of the roof was fair but that it should be dealing with the claim for internal damage. Mrs M made no comment. Elite said again that the internal damage was caused by rain and its policy doesn't cover that.

## **my findings**

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

The available report and commentary on the roof damage satisfy me that Elite's conclusion not to cover this damage was fair and reasonable. Missing mortar is not damage usually caused by a storm and the roof doesn't seem to be in a great state of repair. The fact that there's been no leak since shows the repair was done well but not what caused the need for it in the first place. The fact of the storm and the damage are not enough to say one caused the other.

However, I think Elite should deal with the internal damage. Its policy does say that it covers damage done by storm force winds. But that doesn't mean that where those winds allow rain to enter the property the damage caused by the rain won't be covered. But for the storm winds the rain wouldn't have caused damage. If rain had been getting in to Mrs M's property during non-storm conditions then that might be different. But I've seen no evidence of that here. The damage which occurred to Mrs M's bathroom doesn't seem to have been gradual so I can't see any fair way that Elite can reasonably deny liability for resolving it.

## **my final decision**

I uphold this complaint in part. I require Elite Insurance Company Limited to settle Mrs M's claim for internal damage in line with the remaining terms and conditions of the policy.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs M to accept or reject my decision before 28 October 2016.

Fiona Robinson  
**ombudsman**